

succour? Two Israeli political scientists, Yoav Dotan and Menachem Hofnung in *Legal Defeats: Political Wins*, argue that politicians and political parties turn to litigation instead of using political channels to affect public policies because of the growth of open competition within political parties on the one hand, and the reforms in the legal doctrines controlling access to litigation on the other. They argue that politicians resort to litigation to challenge majoritarian policies and also because they gain considerable media exposure that enhances their political stature. Their hypothesis works in the case of the Sethusamudram project where political parties like the BJP challenged the UPA on religious grounds, and got considerable publicity as defenders of Hindu religious beliefs.

The Indian judiciary is hamstrung by the vague outlines of what constitutes a political, and hence non-justiciable question. In *Golaknath vs Union of India*, the court said it was hard to answer what constituted a political question. Even in the US, where the political question doctrine originated—the courts should refrain from deciding issues that are best left to other institutions namely the executive and the legislature—it has

rarely served as a meaningful check on the Supreme Court's actions.

The court can say that an issue involves a political question and is therefore, not justiciable if the text of the Constitution says so, and/or if the court prefers prudence and avoids contentious constitutional questions. The Supreme Court of India, in the early decades after Independence, stayed on the side of prudence, preferring to avoid some constitutional questions by interpreting the constitutional text and giving the political branches the authority to decide those questions. The court said that judicial review “may be avoided on questions of a purely political nature, though pure legal questions camouflaged by the political questions are always justiciable”. But it is unclear how a judge distinguishes between the real thing and the camouflaged one. One yardstick the judges adopted was to see if the case could be resolved through judicially discoverable and manageable standards. But in practice, it is hard to discern the line between what constitutes political questions to be resolved by the state's political wings and justiciable questions to be resolved in court.

American legal scholar Mark Tushnet rightly points out that the political question

Easy does it: The Supreme Court has to be careful about its jurisdiction

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CASES ARE LANGUISHING IN THE HIGH COURTS WHILE AT LEAST 80,691 CASES WERE PENDING WITH THE SUPREME COURT IN 2005.

